EXECUTIVE ORDER

AUTHORIZING THE ALIEN PROPERTY CUSTODIAN TO SELL CERTAIN PROPERTY UPON THE NEW YORK STOCK EXCHANGE

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DEPT. OF STATE
MAR 30 1925
DIVISION OF PUBLICATIONS

By virtue of the authority vested in me by an Act of Congress entitled "An act to define, regulate and punish trading with the enemy and for other purposes," approved October 6, 1917, known as the "Trading with the Enemy Act", and the amendments to such Act embodied in "An act making appropriations to supply urgent deficiencies in the appropriations for the fiscal year ending June 30, 1918, and prior fiscal years on account of war expenses and for other purposes", approved March 28, 1918, and the amendment to such act embodied in "An act making appropriations to supply deficiencies in appropriations for the fiscal year ending June 30, 1919 and prior fiscal years on account of war expenses, and for other purposes", approved November 4, 1918, and all other amendments thereto, to make certain orders such as that herein contained, I hereby, in the public interest, make the following determination, order, rule and regulations:

The Alien Property Custodian is hereby authorized to sell upon the New York Stock Exchange, at such time as to him or to his authorized agent may seem advisable, without public or other advertisement, Six hundred ninety one and six tenths (691-6/10) shares of the common stock of the May Department Stores Company, incorporated under the laws of the State of New York, of the par value of $50.00 per share, which said shares were heretofore required to be conveyed, transferred, assigned and delivered to the Alien Property Custodian as the property of Straus & Company, Karlsruhe, Germany, under the provisions of the said "Trading with the Enemy Act".

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My reasons for the foregoing determination and order are:

First: That the earnings of the corporation would indicate that there appears to be no reason to anticipate an increase in the dividend rate and that the income return upon the investment, based on current market quotations, is too small to warrant the retention of the principal in a security the market price of which fluctuates so widely.

Second: That the sale of the said stock and the investment of the proceeds in Liberty Bonds or Certificates of Indebtedness to the United States Government would insure a fair income upon the investment and conserve the principal, preventing possible depreciation by reason of a decline in the market price.

Third: That the sale of the said stock will result in the realization in tangible form of a great increase in principal by virtue of the appreciation of the market value of the stock since the times of its issue and since its seizure by the Alien Property Custodian.

Fourth: That a public or other advertisement of the sale of the said stock or attempted sale at auction, would be a useless formality involving unnecessary expense and inconvenience, and would cause such a delay as to imperil the realization of a price equal to that now prevailing on the open market.

THE WHITE HOUSE,
~~February~~ March 9, 1925.

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